

Aging and People with Disabilities

Number: APD-PT-26-007

Authorized by: Jane-ellen Weidanz

Issue date: 6/12/2026

Subject: Home and Community-Based Services Waiver Compliance Requirements

Transmitting (check the box that best applies)

- ☒ New policy ☐ Policy change ☐ Policy clarification ☐ Executive letter
☐ Administrative Rule ☐ Manual update ☐ Other:

Applies to (check all that apply):

- | | |
|--|--|
| ☐ All ODHS employees | ☐ County DD Program Managers |
| ☒ Aging and People with Disabilities | ☐ Developmental Disabilities Services |
| ☒ Area Agencies on Aging: -- Type B -- | ☐ Self-Sufficiency Programs |
| ☐ Child Welfare Division | ☐ Support Service Brokerage Directors |
| ☐ Children's Intensive In Home Services | ☐ Stabilization and Crisis Unit |
| ☐ Children's Residential Services | ☐ Other (please specify): Enter Text |

Policy/rule title: Home and Community-Based Services Waiver Compliance Requirements

Policy/rule numbers: OAR 411-004, OAR 411-015-0008(2)

Release number:

Effective date: Upon release

Expiration date:

References: N/A

Web address: <https://www.oregon.gov/odhs/providers-partners/seniors-disabilities/Pages/case-management.aspx>

Discussion/interpretation

Updates in **bold** [brackets].

The Oregon Department of Human Services (ODHS) Aging and People with Disabilities (APD) must make changes to meet several Home and Community-Based Services (HCBS) waiver performance measures required by the Centers for Medicare and Medicaid Services (CMS). A recent audit shows Oregon is out of compliance in these areas:

- **Performance Measure 18** requires that a waiver participant's service plan addresses risk and safety concerns.
- **Performance Measure 19** requires that a waiver participant's service plan addresses personal goals and preferences.
- **Performance Measure 23** requires that services are delivered in the type, scope, amount, duration, and frequency authorized in the service plan.
- **Performance Measure 24** requires that waiver participants are offered a choice between institutional care and home and community-based services.
- **Performance Measure 25** requires that waiver participants are offered a choice among providers.

This Policy Transmittal (PT) outlines the actions APD is taking to improve compliance, and what the case managers (CM) must do to ensure compliance. APD has created new trainings, tools and resources for case managers to use during service planning to meet CMS requirements.

CMs must immediately implement these actions after completing the required training (available starting May 18, 2026), and no later than June 12, 2026.

Implementation/transition instructions

Case managers and applicable staff must complete the [1915\(c\) HCBS Waiver Compliance Training Series \(APD-AR-26-013\)](#) and implement the actions below no later than June 12, 2026.

Performance Measure 18: Service plans address risk and safety concerns

To meet the requirements of Performance Measure 18:

- For all service plans implemented on or after June 12, 2026, or earlier if training is completed, CMs must complete the required risk assessment before service planning for individuals and for settings where a risk assessment is required. For Oregon Project Independence – Medicaid (OPI-M) cases, please refer to [APD-PT-24-017](#) for additional guidance.
- CMs must identify risk levels, document risk and safety concerns, record mitigation strategies, and document the back-up plan in the risk assessment comments.
- CMs must use the Risk Assessment Comment with the risk back-up plan, and the appropriate [Mitigation and Monitoring templates](#) available on CM Tools when documenting the risk assessment in Oregon ACCESS (OA). There is a template for none/low risk assessments and a different template for medium/high risk assessments.
- Until system changes are released, CMs must copy and paste the appropriate template into the narration box in the risk assessment screen in OA. (We expect OA to be updated fall 2026.)
- CMs must complete risk-focused monitoring at the required frequency based on the risk level identified in the risk assessment. Please review [APD-PT-19-022](#) for additional information.

Performance Measure 19: Service plans address personal goals and preferences

To bring Oregon into compliance with Performance Measure 19:

- At each new intake and each reassessment, CMs must review and update the Client Details section in Oregon Access (OA). At a minimum, CMs must review and update:
 - Goals
 - Preferences
 - Strengths

- [Staff must add or update comments for each section and document the date each section was reviewed with the individual. OA system changes are planned to support this requirement in the future. Additional directions will be provided in a Policy Transmittal (PT) when the system update is ready for release. APD is updating Module 3: Goals and Preferences in the ODHS - APD - AAA - 1915(c) HCBS Waiver Compliance Training Series to reflect this clarification].
- This review must be completed before service planning. The service plan and authorized services should help the individual meet their goals.

Note for Performance Measures 18 and 19:

OA will be updated to build the risk template into the risk assessment module. OA will also require CMs to complete goals, preferences and strengths for new intakes and renewals before service planning can be completed. Details about these system changes will be issued in a future transmittal when the changes are ready for release.

Performance Measure 23: Services are delivered in the type, scope, amount, duration, and frequency authorized in the service plan

This measure compares the hours authorized in the service plan to the hours the individual uses.

To ensure compliance with Performance Measure 23:

- ODHS is developing a new report to identify individuals who use less than 90 percent of their authorized service hours.
- A future transmittal will provide instructions for running the report, required follow-up steps, and will cover:
 - When CMs must review use of authorized hours monthly.
 - When an individual uses less than 90 percent of authorized hours, the CM must follow up with the individual to determine the reason for the underuse.

- CMs must utilize the [Service Underutilization Response \(SUR\) template](#) to document the follow-up and any actions taken in OA. These contacts may count as Direct and Indirect Waivered Case Management contacts.

Performance Measures 24 and 25: Choice of services and choice of providers

These measures are currently documented through a signed SPAN/SPA. CMS requires that the consumer sign the SPAN and SPA. However, return rates are low, which affects compliance.

After completion of the required training and no later than June 12, 2026, CMs must use the new [Service Options Counseling \(SOC\) form](#) to document compliance.

To achieve compliance with Performance Measures 24 and 25:

- CMs must obtain a signed SOC form at the initial assessment and at each reassessment while with the consumer.
- The SOC form documents the individual's choice of program benefits, care settings, and providers.
- CMs or support staff must upload the signed SOC form to Laserfiche within 10 business days after the individual signs it.
- For efficiency, CMs are encouraged to use DocuSign to obtain the required signature.
- CMs must be prepared to provide choice counseling so individuals can make an informed decision about available program options, care settings, and providers.

CMs will continue to send the SPAN/SPA and upload signed copies to Laserfiche. This is required as part of the service planning process. Quality Assurance (QA) will no longer use the SPAN/SPA to verify compliance with this measure and will review the SOC form moving forward.

Local/branch action required

Local offices must implement this policy no later than June 12, 2026, and ensure all staff are informed of the updated guidance.

Supervisors must ensure staff have completed the [required training](#) and direct staff to CM Tools for resources.

Central office action required

Provide technical assistance as needed.

Reviewed by impacted parties? ☒ Yes ☐ No

If yes, reviewed by: Ops Review, Central Office Policy, Training Unit for Services and Supports

Filing instructions:

If you have any questions, please contact:

Contact(s): APD Medicaid Policy

Email: apd.medicaidpolicy@odhsoha.oregon.gov